

Court No. - 5

Case :- WRIT - C No. - 11140 of 2020

Petitioner :- Shambhu Yadav

Respondent :- Managing Director U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Awadhesh Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Rohit Ranjan Agarwal,J.

None appears for the petitioner.

Put up as a **fresh case on 20.07.2020.**

Order Date :- 10.7.2020/vkg

Court No. - 34

Case :- WRIT - C No. - 11140 of 2020

Petitioner :- Shambhu Yadav

Respondent :- Managing Director U.P.Power Corporation Limited And 2 Others

Counsel for Petitioner :- Awadhesh Kumar Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vivek Varma,J.

No one appears on behalf of the petitioner.

The recovery notice dated 01.10.2019 is issued on the allegation of theft of electricity as is clear from a perusal of page no.'20' of the paper book.

Sri Kapil Dev Singh Rathore, learned advocate has put in appearance on behalf of the respondent no.2.

The appropriate remedy for the petitioner is to approach the competent authority under Section 126(3) of the Electricity Act, 2003 read with Clause 8.1 of the Electricity Supply Code, 2005.

The writ petition seeking to challenge the recovery proceedings, therefore, cannot be entertained.

The present petition is ***dismissed***, accordingly.

Order Date :- 28.7.2020

P Kesari